

**IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
JUDGE RAYMOND P. MOORE**

Courtroom Deputy: Cathy Pearson
Court Reporter: Tammy Hoffschidt

Date: October 31, 2016

CASE NO. 14-cv-02565-RM-MJW

WELLS FARGO INSURANCE SERVICES USA, INC.,

Plaintiff,

Christopher Patrick
Peter Bulmer
Timothy Kratz

v.

GLENN W. MCQUATE,
PAUL PROUTY, and
MARY WONG,

Defendants.

Amy Miletich
Brendan Benson

COURTROOM MINUTES

JURY TRIAL – DAY 1

COURT IN SESSION: 8:29 a.m. (Jury panel is not present)

Court calls case. Appearances of counsel. Present with Plaintiff's counsel is Jon Lindstrom. Present with defense counsel are Glenn McQuate, Paul Prouty, and Mary Wong.

Discussion held regarding restroom breaks, testimony by depositions, exhibits, and confidentiality of documents.

Court's findings.

ORDERED: To the extent that any document can be redacted to remove a portion that triggered the designation of confidential or highly confidential, counsel shall redact the document and substitute a copy with the courtroom deputy, if and only if it does not injure the evidentiary value.

ORDERED: To the extent that there are still documents that remain subject to a confidential or highly confidential designation, those trial exhibits which have been designated previously as confidential or highly confidential shall maintain that designation. The access will be limited to the parties, the Court, the jurors, and necessary witnesses. Post-trial, the Court will entertain any requests to unseal and may sua sponte issue an order to

show cause.

Discussion held regarding the response to subpoenas. Heidi Wilbur, counsel from Constangy, Brooks, Smith & Prophete, is present and states that subpoena responses from McGriff, Seibels & Williams will be supplemented by the end of today.

Court in recess: 8:48 a.m.

Court in session: 9:21 a.m. Jury panel is present.

Voir dire by the Court.

Court in recess: 10:48 a.m.

Court in session: 11:05 a.m.

11:06 a.m. Voir dire by Ms. Miletich.

11:17 a.m. At the bench, counsel pass the panel for cause.

Plaintiff's Peremptory Challenges:

1. 100295492
2. 100282882
3. 100324648

Defendants' Peremptory Challenges:

1. 100317846
2. 100286370
3. 100322403

Eight jurors sworn to try the case:

1. 100308886
2. 100299147
3. 100327407
4. 100322825
5. 100284394
6. 100319397
7. 100327047
8. 100315616

11:26 a.m. The Court instructs the jury.

Court in recess: 11:53 a.m.

Court in session: 1:30 p.m.

1:32 p.m. **Jury is present.**

Opening statements presented by Mr. Katz.

1:42 p.m. Opening statements presented by Ms. Miletich.

2:03 p.m. Plaintiff's witness, Jon Lindstrom, is sworn and examined by Mr. Katz.
Stipulated exhibits: 147, 29.
Admitted exhibits: 79, 165.

Court in recess: 3:07 p.m.

Court in session: 3:16 p.m. Jury is present.

3:17 p.m. Continued direct examination of Jon Lindstrom by Mr. Katz.
Stipulated exhibits: 127, 89, 100.
Admitted exhibits: 166, 167.

3:45 p.m. Cross-examination of Jon Lindstrom by Ms. Miletich.
Witness referred to deposition.

4:01 p.m. **Jury is excused.**

COURT IN RECESS: 4:02 p.m.

Total in court time: 4:57

Hearing continued